

([https://www.google.co.uk](https://www.google.co.uk/search?q=richmond+chambers+in)
[q=richmond+chambers+in](https://www.google.co.uk/search?q=richmond+chambers+in)

COMPLIANCE AND CIVIL PENALTIES



LATEST NEWS: UK Asylum Reforms 2025: Restoring Order and Control? (<https://immigrationbarrister.co.uk/uk-asylum-reforms-what-to-expect-from-the-new-uk-asylum-reforms-2025/>)

LOCATION: [HOME \(HTTPS://IMMIGRATIONBARRISTER.CO.UK/\)](https://immigrationbarrister.co.uk/) » ...

COMPLIANCE AND CIVIL PENALTIES

All UK employers have a responsibility to avoid employing illegal workers. By carrying out appropriate document checks, employers may protect themselves from receiving a civil penalty or prosecution.

Right to work checks

Employers are under a duty to check that every employee has a right to work. You must conduct this check before your employees commence working for you. If you want to employ a worker from outside the European Economic Area, they must obtain, or already have, permission to work.

You must obtain documents from either of the Home Office's lists, List A or List B. List A is for people who are allowed to work in the UK indefinitely. List B is for people who are only entitled to work for a limited period of time. Obtaining the correct documents and keeping copies in the prescribed format will give you a 'statutory excuse' against a civil penalty if you later find out that the worker does not have the right to work. If you do not obtain the exact documents listed, you will not have a statutory excuse for that worker.

You must check the documents in the presence of the holder, and before they start working for you. You must check several properties of the documents. It is good practice to record that you have checked each point.

You must make a clear copy of each document in a format which cannot be altered and retain this copy securely for not less than two years after the employment has come to an end.

If the person has time-limited permission to be in the UK and perform the work, you must carry out additional checks when that permission expires. (<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)

It is unlawful to discriminate in employment practices because of race. To avoid discrimination, you should check all potential employees' right to work documents.

If a potential employee cannot prove their right to work then you should not employ them. If the employee already works for you, has time-limited permission to work and cannot prove their right to work in a follow up check, you should cease employing them.

Civil Penalties

If you are found to have employed a worker illegally, you may be liable for a civil penalty. Each illegal worker will attract a penalty.

The Home Office will send you a notice telling you that your case is being referred to officials who will consider your liability for a civil penalty. If you do not think that you are liable for the civil penalty, you can object to the Home Office or appeal to a court if:

- You are not liable to pay the penalty (e.g. you are not the worker's employer);
- You have a statutory excuse (e.g. you undertook the correct document checks); or
- The level of the penalty is too high (e.g. the Home Office did not take mitigating circumstances into account).

The maximum penalty you can be made to pay is £20,000 per illegal worker (£5,000 if they are Croatian). The amount you will have to pay will depend on whether you have been found to employ illegal workers before, whether you have reported the illegal worker to the Home Office, whether you have co-operated with the Home Office and whether you generally comply with your employer duties to prevent illegal working.

Whether you have to pay a civil penalty, and how much, will also depend on when the employee commenced working with you.

There are options to pay a reduced penalty if you pay quickly, or pay by instalments. If you do not pay the penalty, object or appeal by the due dates, the Home Office will commence court action against you. If the Home Office is successful, you will have a County Court Judgment against you. This may impact upon your credit rating and affect your ability to act as a company director.

It is also a criminal offence to knowingly employ an illegal worker, or employ an illegal worker where you had reasonable cause to believe that they did not have the right to work in the UK. You may face up to five years' imprisonment and/or an unlimited fine.

What else do I need to know about right to work checks and civil penalties?

(L) <https://www.google.co.uk/search?q=richmond+chambers+in>

You can avoid incurring a civil penalty by conducting appropriate right to work checks. If you have carried out suitable document checks, you will have a 'statutory excuse' and will not be liable for a civil penalty

Document checks will not protect you against prosecution if you knew the worker did not have permission to work, or if you could reasonably have known.

The Home Office publishes lists of all civil penalties imposed on companies. These are freely accessible to the public using the Home Office website. The Home Office often also issues press releases to local and national media, naming companies that have employed workers illegally.

If you later apply for a Skilled Worker or Temporary Worker Sponsor Licence with a view to sponsoring foreign workers, any history of employing workers illegally will affect your application.

How our immigration barristers can help

Our immigration barristers are well versed in all the required right to work checks that employers must undertake. We work closely with businesses to ensure that their HR processes are robust and can help to design and audit current right to work checks in the workplace. We will simplify the process for you and help to protect you and your business from any immigration compliance issues.

If you have been issued with a Notification of Liability for a Civil Penalty, our immigration barristers can advise as to the likelihood of establishing a statutory excuse. We also assist with submitting objections to the Civil Penalty Compliance Team and provide legal representation at civil penalty appeals in the County Court.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to employers as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Mock Immigration Audits



Sponsor Licence Applications



Sponsor Licence Renewals



Sponsor Licence Suspensions and Revocations

immigration barristers

(https://www.google.co.uk
g=richmond+chambers+in

Sponsor Licence Refusals

WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form.

open

LATEST ARTICLES
EXPERT COMMENT AND INSIGHT
FROM OUR IMMIGRATION TEAM

Right to Work Checks: Essential 2025 Updates for Employers

(https://immigrationbarrister.co.uk/right-to-work-checks-2025-updates-employers/)

By Annie Ee - Senior Legal Associate

31 Mar 2025

In This Article 1. Right to Work Checks: 2025 Guidance Overview 2. Key Updates in the Right to Work Checks Guidance 3. Transition to eVisas: Decommissioning of Biometric Cards 4. Annex A Updated List of Acceptable...

(https://immigrationbarrister.co.uk/right-to-work-checks-2025-updates-employers/)

(/uk-immigration-law-blog/) > (https://immigrationbarrister.co.uk/right-to-work-checks-2025-updates-employers/)

Sponsor Licence Compliance: Home Office Announces Tougher Measures For Employers

(https://immigrationbarrister.co.uk/sponsor-licence-compliance-home-office-announces-tougher-measures-for-employers/)

By Eve Loveman - Legal Associate

30 Dec 2024

immigration barristers

(https://www.google.co.uk
g=richmond+chambers+in

(/ In This Article 1. Home Office Crack Down on Immigration Law Breaches and Sponsor Licence Requirements 2. Longer Cooling-Off Periods for Sponsor Licence Revocation 3. Extended Action Plans for Sponsor...

(https://immigrationbarrister.co.uk/sponsor-licence-compliance-home-office-announces-tougher-measures-for-employers/)

(/uk- office-announces-tougher-measures-for-employers/)

immigration-
law-
blog/)

Fines for Illegal Working to Triple From 13 February 2024

(https://immigrationbarrister.co.uk/fines-for-illegal-working-to-triple-from-13-february-2024/)

By Taya Sayekaya - Immigration Barrister
04 Feb 2024

Ch-ch-ch-changes! The Home Secretary's announcement of its intention to increase maximum fines for employers caught employing individuals without lawful immigration status ('illegal workers'), back in August...

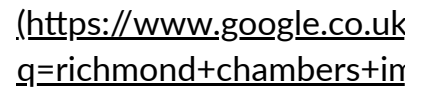
(https://immigrationbarrister.co.uk/fines-for-illegal-working-to-triple-from-13-february-2024/)

(/uk- from-13-february-2024/)

immigration-
law-
blog/)

More (/uk-immigration-law-blog/)

to top



CONNECT WITH US

Home (<https://immigrationbarrister.co.uk/>)

Personal Immigration (<https://immigrationbarrister.co.uk/personal-immigration/>)

Work & Business Immigration (<https://immigrationbarrister.co.uk/business-immigration/>)

About Us (<https://immigrationbarrister.co.uk/about-us/>)

Careers (<https://immigrationbarrister.co.uk/careers/>)

Testimonials (<https://immigrationbarrister.co.uk/testimonials/>)

Knowledge Centre (<https://immigrationbarrister.co.uk/uk-immigration-law-blog/>)

Contact (<https://immigrationbarrister.co.uk/contact/>)



RICHMOND CHAMBERS LLP
(UK)

[https://www.google.co.uk
q=richmond+chambers+in](https://www.google.co.uk/q=richmond+chambers+in)

LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

[https://www.google.co.uk/search?
q=richmond+chambers+immigration+barristers&ie=utf-
8&oe=utf-
8&client=firefox-b-
ab&gfe_rd=cr&ei=Y6DfV4KUOljS8AeOspfoDg#gfe_rd=cr&lrd=0x487604b319bec605:0xe9551daf112d6ffb,1\)](https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers&ie=utf-8&oe=utf-8&client=firefox-b-ab&gfe_rd=cr&ei=Y6DfV4KUOljS8AeOspfoDg#gfe_rd=cr&lrd=0x487604b319bec605:0xe9551daf112d6ffb,1)



<https://www.google.co.uk/q=richmond+chambers+in>



© copyright - richmond chambers immigration barristers / 2025

[Legal Notices \(/legal\)](/legal) | [Privacy & Cookies \(/legal/privacy-cookies\)](/legal/privacy-cookies) | [Accessibility \(/legal/accessibility\)](/legal/accessibility) | [Sitemap \(/sitemap_index.xml\)](/sitemap_index.xml) | [Modern Slavery Statement \(/legal/modern-slavery-statement\)](/legal/modern-slavery-statement)